DECLARATION OF ERIC B. JONES IN SUPPORT OF EX PARTE APPLICATION FOR TRO

ERIC B. JONES (IN PRO PER)
5634 Noel Drive
Temple City, CA 91780
Tel: (626) 348-3019
Email: eric@recovery-compass.org

Sole Successor Trustee
Petitioner (Pro Per)

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES
CENTRAL DISTRICT

In the Matter of:
The Judy Brakebill Jones 2008 Revocable Trust dated March 18, 2008

CASE NO.: (to be assigned)

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Date: [to be filled by attorney]
Time: [to be filled by attorney]
Dept.: Probate

I, Eric B. Jones, declare as follows:

1. CAPACITY AND KNOWLEDGE

I am the Petitioner and sole successor trustee of The Judy Brakebill Jones 2008 Revocable Trust dated March 18, 2008. I have personal knowledge of the facts stated herein, and if called as a witness, I could competently testify thereto.

2. SUCCESSION AND AUTHORITY

The Trustor, Judy Lee Brakebill Jones Lasher, died on April 4, 2025. Pursuant to the Trust instrument (Exhibit A), I immediately succeeded as the sole Trustee.

3. UNAUTHORIZED SALE

After I assumed the role of Trustee, on or about May 22, 2025, Respondents sold a Trust-owned Mercedes-Benz without my knowledge or consent.

4. DEPOSIT OF PROCEEDS

Respondents deposited $10,650 from the sale into the personal Chase Bank account (ending 9872) of Gary William Jones, who is not a Trust beneficiary. A true and correct copy of the deposit slip is attached as Exhibit B.

4A. MERCEDES-BENZ SALE AND CHAIN OF CUSTODY

On June 27, 2025, Nicora Law, counsel for Respondent Heidi Blanchard, sent a written admission confirming the unauthorized sale and deposit of proceeds (Exhibit C). This constitutes a judicial admission under California Evidence Code § 1220.

On May 24, 2025, I personally received via email from Gretchen Angela Jones a true and correct copy of the Chase Bank deposit slip. I preserved the email in its original electronic format and verified the metadata shows transmission on May 24, 2025 at 2:47 PM Pacific Time.

The Nicora Law admission eliminates any factual dispute regarding: (1) Trust ownership of the Mercedes, (2) the unauthorized nature of the sale, (3) the amount of proceeds ($10,650), and (4) the improper deposit into a non-beneficiary's account. Recovery is mandatory under Probate Code § 850 and double damages are warranted under § 859 for bad faith conversion.

5. CONCEALMENT OF IPHONE

Respondents have refused to surrender the decedent's original iPhone. Exhibit D consists of true and correct copies of text messages in which Respondents discuss the need for the 'real phone' and reference a 'decoy phone,' demonstrating active concealment.

6. COMPREHENSIVE ASSET PROTECTION SCOPE

This Petition seeks protection and recovery of ALL Trust assets currently at risk, including but not limited to:

(a) Real Property at 17742 Berta Canyon Road, Salinas, CA 93907 (APN: 3214-017-018), subject to a December 3, 2025 foreclosure sale;

(b) the $10,650 Mercedes sale proceeds;

(c) the original iPhone 11 Pro, access to which is authorized under RUFADAA (Probate Code §§ 870-872);

(d) approximately $40,000 in gold bars and precious metals; and

(e) all other property removed from the Trust.

As Trustee, I have a mandatory fiduciary duty under Probate Code § 16000 et seq. to protect all Trust assets. The December 3, 2025 foreclosure deadline creates irreversible harm.

7. IMMEDIATE HARM

Without a TRO, the $10,650 may be dissipated, and digital assets on the iPhone could be permanently lost. Monetary damages are inadequate.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on ___, 2025, at Temple City, California.

ERIC B. JONES